

ZAMORA v. CLAAP

16CV41649

MOTION FOR ATTORNEY FEES and MOTION TO TAX COSTS AND STRIKE REPLY DECLARATIONS

Remittitur to trial court was filed Oct. 2, 2023; the Motion for Attorney's Fees was timely filed Oct. 27, 2023.

The court's authority to award attorney fees in California is governed by various statutes and case law. For instance, as relevant herein, under Welfare and Institutions Code Section 15657.5(a)(b), plaintiff was entitled to award of attorney fees and costs for financial abuse. An award of attorney's fees is a mandatory form of relief regardless of whether the plaintiff is awarded any other form of relief (*Arace v. Medico Investments, LLC* (2020) 48 Cal. App. 5th 977.) Similarly, a trial court's award of attorney's fees is reviewed for an abuse of discretion, and the appellate court will not disturb the trial court's judgment unless it is clearly wrong (See *Meridian Financial Services, Inc. v. Phan* (2021) 67 Cal. App. 5th 657; *Gutierrez v. Chopard USA Ltd.* (2022) 82 Cal. App. 5th 383; *Snoeck v. ExakTime Innovations, Inc.* (2023) 96 Cal. App. 5th 908.)

California Welfare and Institutions Code Section 15657.5(a)(b)(d)(e) provides in pertinent part:

(a) Where it is proven by a preponderance of the evidence that a defendant is liable for financial abuse, as defined in Section 15610.30, in addition to compensatory damages and all other remedies otherwise provided by law, the court shall award to the plaintiff reasonable attorney's fees and costs. The term "costs" includes, but is not limited to, reasonable fees for the services of a conservator, if any, devoted to the litigation of a claim brought under this article.

(b) Where it is proven by a preponderance of the evidence that a defendant is liable for financial abuse, as defined in Section 15610.30, and where it is proven by clear and convincing evidence that the defendant has been guilty of recklessness, oppression, fraud, or malice in the commission of the abuse, in addition to reasonable attorney's fees and costs set forth in subdivision (a), compensatory damages, and all other remedies otherwise provided by law, the limitations imposed by Section 377.34 of the Code of Civil Procedure on the damages recoverable shall not apply.

* * *

In an action under the Elder Abuse and Dependent Adult Civil Protection Act, the plaintiff is entitled to an award of attorney fees and costs for financial abuse. The plain language of Welfare and Institutions Code §15657.5 indicates that an award of attorney fees is a *mandatory* form of relief (Welfare and Institutions Code §15657.5.)

Defendant's Points and Authorities in Opposition to Plaintiff's Motion for Attorney Fees argues for an award:

"Defendant believes that an award of \$25,000.00 based upon the records produced would be a reasonable for the trial court fees unless the Court realizes the request is so excessive as to justify no award and \$25,000.00 for the appeal court fees is reasonable."

The Declaration of Timothy L. Hamilton in Support of Plaintiff's Motion for Attorney's Fees timely sets forth attorney fees in the amount of One Hundred Eighty-Three Thousand, Four Hundred Nineteen Dollars (\$183,419) and recoverable costs totaling Five Thousand Nine Hundred Seventy-Six and Ninety-Five Cents (\$5,976.95).

Under California Welfare and Institutions Code §15657.5, an award of attorney's fees is mandatory Attorney's fees under §15657.5(a), may be awarded when a defendant is liable for financial elder abuse under §15610.30. (*Cameron v. Las Orchidias Properties, LLC* (2022) 82 Cal.App.5th 481.) The standard of review for attorney fees awards under §15657.5 is abuse of discretion, with the trial court's award of fees presumed reasonable. (*Save Agoura Cornell Knoll v. City of Agoura Hills* (2020) 46 Cal.App.5th 665.)

The Third Appellate District Court of Appeals at page 16 of its decision held:

"Where it is proven by a preponderance of the evidence that a defendant is liable for financial abuse, . . . in addition to compensatory damages and all other remedies otherwise provided by law, the court shall award to the plaintiff reasonable attorney's fees and costs." (§ 15657.5, subd. (a), italics added.)

"The trial court found Clyde's three violations of his fiduciary duties toward Gus also constituted financial abuse within the meaning of the Elder Abuse Act, and thus awarded attorney fees and costs to Gus's estate. Clyde argues these three acts were not financial abuse. We disagree." (*Zamora v. Clapp* (July 5, 2023, C095440 [p.16])

This Court hereby orders as follows:

\$114,021.50 for attorney's fees leading up to trial, attending trial, post-trial motions and mediation. Attorney's fees and costs for appeal, motions during appeal, respondent's brief, oral argument, defending a request for

re-hearing, petitions for review and costs and fees for this motion after remittitur for \$69,197.50 and costs in the amount of \$5,976.95, for **total attorney's fees of \$183,219, and costs \$5,976.95.**)

Defendant's Motion to Tax Costs for the foregoing reason is DENIED.

The Clerk shall provide notice of this Ruling to the parties forthwith. Moving party to submit a formal order pursuant to Rule of Court 3.1312 in conformity with this ruling.